

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201510545	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/11/2015 4:40 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/11/2017	Precinct: 23		
Date/Time CV Reported Tue, 12/15/2015 10:08 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 12/15/2015 10:08 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			GANG M
2. DT3 Robert Locher	305	938866	GANG M
3. LT Stephen Phelan	00000	918155	GANG M
4. POM Ruben Pagan	05862	949437	GANG M

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Bianca Guerrido	4374	940224	GANG M
2. CPT Christopher Henning	00000	925443	NARCB BX
3. SGT Wesley Fradera	04246	941018	GANG M
4. DT3 Ryan Foy	5277	940155	GANG M
5. DT3 Matthew Sgambati	4473	944997	GANG M
6. DT3 Mark Tufano	06899	919796	GANG M

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	A . Exonerated
B . DT3 Robert Locher	Abuse: Det. Robert Locher entered § 87(2)(b) in Manhattan.	B . Exonerated
C . LT Stephen Phelan	Discourtesy: Lt. Stephen Phelan spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Ruben Pagan	Abuse: PO Ruben Pagan threatened to notify Administration for Children's Services.	D . Unsubstantiated
E . LT Stephen Phelan	Abuse: Lt. Stephen Phelan failed to show the search warrant to § 87(2)(b)	E . Substantiated

Case Summary

On December 15, 2015, this complaint was filed as a walk-in at the CCRB by § 87(2)(b) filed this complaint on behalf of § 87(2)(b) and herself.

On December 11, 2015, at approximately 4:40 a.m., members of the Manhattan Gang Squad, including Det. Robert Locher, Lieutenant Stephen Phelan, and PO Ruben Pagan, executed a search warrant at § 87(2)(b)'s apartment, located at § 87(2)(b) in Manhattan.

§ 87(2)(b) yelled out to the officers that she would open the apartment door for them. An unidentified officer allegedly responded, "Get the fuck away from the door." (**Allegation A**). The residents of the apartment were in the living room when the officers entered and searched the apartment (**Allegation B**).

The officers ordered the residents to get on the floor. § 87(2)(b) explained to the officers that she was physically unable to do so. In response, Lieutenant Stephen Phelan allegedly stated, "I don't give a fuck" (**Allegation C**). PO Pagan allegedly told § 87(2)(b) that the Administration for Child Services would be notified if the civilians refused to tell the officers if there were illegal items in the house (**Allegation D**).

§ 87(2)(b) and § 87(2)(b) repeatedly asked to see a search warrant, but were told to wait. § 87(2)(b) and § 87(2)(b) were placed under arrest and taken outside of the apartment, Lieutenant Phelan then handed § 87(2)(b) the cover sheet of the search warrant (Board Review 16), but did not show her the warrant itself (**Allegation E**).

§ 87(2)(b) and § 87(2)(b) were arrested for § 87(2)(b), § 87(2)(b), [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] § 87(2)(b).

This case has video evidence, a SnagIt copy which has been placed below. The transcription of the video can be found at Board Review 05 and the original video can be found at Board Review 01. The video was provided to the CCRB by § 87(2)(b) and was recorded by a neighbor who was across the street at the time of this incident. The video depicts only the latter part of the officers' entry into § 87(2)(b).



201510545_20160310_1405_DM.mp4

Mediation, Civil and Criminal Histories

- This case was not mediation eligible due to the arrests.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] § 87(2)(b).
- As of March 3, 2016, neither § 87(2)(b) nor § 87(2)(b) have not filed a Notice of Claim with the City of New York in regard to this incident (Board Review 03).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (Board Review 04).

- This is the fourth CCRB complaint filed against Det. Locher, who has a total of seven allegations in his CCRB history and has been a member of service for 10 years. In CCRB case number 200700923, one physical force allegation was substantiated. The Board recommended instructions, but the NYPD declined to prosecute.
- This is the eighth CCRB complaint filed against Lieutenant Stephen Phelan, who has a total of 24 allegations in his CCRB history and has been a member of service for 10 years. Five allegations have been substantiated against Lieutenant Phelan. In CCRB case number 200309812, two frisk and/or search allegations and three vehicle stop allegations against Lieutenant Phelan were substantiated. At the recommendation of the CCRB, the NYPD issued Command Discipline A to Lieutenant Phelan.
- This is the third CCRB complaint filed against PO Pagan, who has a total of three allegations in his CCRB history and has been a member of service for five years. There are no substantiated allegations against PO Pagan.

Findings and Recommendations

Allegations not pled

- § 87(2)(g) [REDACTED]

Subject Officer Identification

- None of the civilians could be see who allegedly yelled through the door the discourteous statement and none of the officers acknowledged using or hearing profanity. § 87(2)(g) [REDACTED]
- Det. Locher was the investigating officer who obtained the search warrant and he was present for its execution. § 87(2)(g) [REDACTED]
- § 87(2)(b) [REDACTED] stated that the officer, described as a white male, who handed her the document presented as the search warrant and the second discourtesy as the same officer. Lieutenant Phelan, a white male, acknowledged giving § 87(2)(b) [REDACTED] the document. § 87(2)(g) [REDACTED].
- § 87(2)(b) [REDACTED] stated that the officer that made the threat to notify ACS as an officer that stayed with them the entire time. § 87(2)(g) [REDACTED]
[REDACTED]. PO Pagan acknowledged both staying with the residents during the search and having conversation with them while doing so. § 87(2)(b) [REDACTED] described this officer as a bald male with a caramel complexion and an athletic build. PO Pagan's MOS photo shows a male with very low cut hair, a caramel complexion, and who weighs § 87(2)(b) [REDACTED] (Board Review 18). § 87(2)(g) [REDACTED]

Allegation A – Discourteous: An officer spoke discourteously to § 87(2)(b) [REDACTED]

It is undisputed that the Manhattan Gang Squad's initial attempt to open the door to § 87(2)(b) [REDACTED] in Manhattan, failed, and that as a result of the noise, the occupants of the home were awakened. It is also undisputed that one occupant was attempting to

communicate with the squad, that § 87(2)(b) § 87(2)(b) was in close proximity to the door speaking through it, and that the squad responded with verbal commands.

The video provided to the CCRB by § 87(2)(b) only partially captures the entry into § 87(2)(b) § 87(2)(b) (Board Review 05). The video does not depict the initial attempts to break down the door and it does not capture any discourteous statements made through the closed door. Once the door was breached, a male officer can be heard saying “Get the fuck on the floor.” § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) allege that an officer used profanity toward § 87(2)(b) while they were attempting to breach the door. § 87(2)(b) stated that the officer said, “Get the fuck away from the door.” § 87(2)(b) stated that the said, “Get back, back up, get the fuck back” (Board Review 07). § 87(2)(b) stated that the officer said, “Shut the fuck up, move the fuck back, shut the fuck up” (Board Review 08).

All of the officers who were interviewed stated that the only response to inaudible yelling from inside the apartment was the announcement of police presence and commands of get away from the door and get on the floor. No officer acknowledged using profanity or hearing any other officer do so (Board Review 09) (Board Review 10) (Board Review 11) (Board Review 12) (Board Review 13).

In certain stressful encounters, an officer may use limited profanity where the need to gain compliance or maintain control of an incident is present. NYPD v. Court, OATH Index 78667/03 (Board Review 14).

§ 87(2)(g)

It is therefore recommended that Allegation A be **exonerated**.

Allegation B – Abuse of Authority: Det. Robert Locher entered and searched § 87(2)(b) in Manhattan.

It is undisputed that officers entered and searched § 87(2)(b) s residence on December 11, 2015. The Department Advocate’s Office confirmed that a search warrant was issued on § 87(2)(b), and was executed at § 87(2)(b) on December 11, 2015. The search warrant was signed by the § 87(2)(b) (Board Review 15).

§ 87(2)(g)

It is therefore recommended that Allegation B be **exonerated**.

Allegation C – Discourtesy: Lieutenant Stephen Phelan spoke discourteously to § 87(2)(b)

It is undisputed that when the Manhattan Gang Squad entered § 87(2)(b), the squad continuously issued commands for the occupants to get onto the ground. § 87(2)(b) stated that when the squad issued the commands to get on the floor, she attempted to inform them that she was physically unable to get to the ground due to an injury

from a previous incident. She alleges that Lieutenant Phelan said that her injury did not just happen and that he ordered her to “get the fuck on the floor.”

At 0:15 in the video evidence, a male officer’s voice is heard yelling “get on the fucking ground.” This statement is made immediately as the officers are entering the apartment.

According to § 87(2)(b) the officers were unable to hear § 87(2)(b) so § 87(2)(b) raised her voice to bring attention to § 87(2)(b) § 87(2)(b) stated that the officer said “sit her on her ass” in response.

§ 87(2)(b) stated that in response the officer said, “I don’t give a fuck, that didn’t just happen today.”

No officer interviewed said they heard § 87(2)(b) refuse to comply with the order to get on the ground and consistently said that all occupants were compliant. Lieutenant Phelan denied using profanity toward § 87(2)(b) and no officer interviewed acknowledged Lieutenant Phelan doing so.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation C be **unsubstantiated**.

Allegation D – Abuse of Authority: PO Ruben Pagan threatened to notify Administration for Child Services.

§ 87(2)(b) alleged that PO Pagan told § 87(2)(b) and the other occupants that if they did not tell the officers where the illegal items were in the house, § 87(2)(b)’s daughter would “end up in the system.”

PO Pagan denied telling the family that he would put a child in “the system” and he denied having any further conversation than telling them that the officers had a search warrant.

On the day he was interviewed, PO Pagan did not know what the NYPD’s policy on contacting Administration for Child Services was. PO Pagan stated that he did not mention the topic of notifying Administration for Child Services, nor did he hear any other officer do so. No other officer interviewed acknowledged mentioning, or hearing another officer mention, the topic of notifying Administration for Child Services.

§ 87(2)(g)

It is therefore recommended that Allegation D be **unsubstantiated**.

Allegation E – Abuse of Authority: Lieutenant Stephen Phelan failed to show the search warrant to § 87(2)(b)

It is undisputed that the only document shown to § 87(2)(b) was the cover sheet to the search warrant, which did not contain the signature of the judge (Board Review 16). The document only stated the following: “In the matter of an application for a warrant to search” and it did not state that it was in fact a search warrant.

Lieutenant Phelan acknowledged that he had a copy of the warrant with him at the time of the incident. Lieutenant Phelan stated that he did not provide § 87(2)(b) with an affidavit signed by a judge because it contained sensitive information.

Patrol Guide Procedure 212-105 (Board Review 17) Officers executing a search warrant shall, when able to do so safely, show a copy of the search warrant to any of the occupants on the premises.

§ 87(2)(g)

It is recommended that Allegation E be **substantiated**.

Squad 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date